

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine White	Team: Squad #05	CCRB Case #: 202003773	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 05/30/2020 8:15 PM	Location of Incident: vicinity of 7 Gouverneur Slip East	18 Mo. SOL 5/4/2022	Precinct: 07
Date/Time CV Reported Sun, 05/31/2020 9:46 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/31/2020 9:46 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. POM Bibek Thapa	28719	955572	075 PCT
4. POM Thomas Urban	14621	957237	075 PCT
5. SGT Majer Saleh	02402	929110	034 PCT
6. POM Ravi Moonan	12917	926429	SRG 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Peter Murphy	15299	968029	113 PCT
2. POM Checheng Tsao	03280	963782	113 PCT
3. POM Ian Woodard	24831	962175	103 PCT
4. POM Inderjit Singh	24231	963279	108 PCT
5. POM Anthony Pala	17692	964200	103 PCT
6. POM Thomas Kotarski	19332	962532	105 PCT
7. POM Dwayne Thomas	31632	945864	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
8. POM Rico Iantorno	11296	954957	077 PCT
9. POM John Swofford	12809	953461	077 PCT
10. POM Matthew Davang	15255	966016	103 PCT
11. SGT Justin Carlin	04694	950160	105 PCT
12. SGT Steven Siermala	5464	947491	075 PCT
13. POM Marcelino Roman	30168	965481	105 PCT
14. POF Shurland Smith	17840	951281	REC TNG
15. SGT Gellison Flores	03276	948973	PSA 7
16. POM Jackson Fontana	11437	960550	006 PCT
17. POM Kamron Chase	11421	961683	079 PCT
18. LT Kimberly Hilliard	00000	935022	REC TNG
19. POM John Ferguson	09473	966051	103 PCT
20. POM Shaun Gumbs	29556	932164	REC TNG
21. POM Victor Gordillo	11256	956691	069 PCT
22. POM Ramon Andujar	11687	945136	044 PCT
23. POM Emmanuel Yungaicela	10544	966407	043 PCT
24. POM Xavier Vazquez	18682	968866	020 PCT
25. POM Justin Vera	14889	968175	103 PCT
26. POM Michael Avelin	14107	966450	107 PCT
27. SGT Hyon Chae	02637	933685	007 PCT
28. POF Saskya Rodriguez	17123	961196	077 PCT
29. POM Frank Russo	14935	966319	C A B
30. POM Jamie Smith	13962	966347	077 PCT
31. POM Damani Morgan	5167	967615	077 PCT
32. POM Joseph Joy	14669	956013	100 PCT
33. POM Daniel Costa	25372	962996	110 PCT
34. POM Nicholas Federico	08760	961755	100 PCT
35. POM Ramon Castellanos	00194	959537	045 PCT
36. DT3 Jarrod Hebert	6826	938601	DB LPS
37. POM Victor Yupa	23804	955685	034 PCT
38. POM Vicente Cardenas	00840	959532	SRG 4
39. SGT John Palazzo	03396	935457	TRN BUR
40. SGT Jenique Scottcooper	05608	953387	CRM CTL
41. POF Nicole Connolly	25476	967015	110 PCT
42. POM Jose Alvarado	08290	918514	REC TNG
43. POM Michael Mccahey	15904	966699	034 PCT
44. SGT Gypsy Pichardo	02623	942353	034 PCT
45. POM Harold Ogando	24662	968676	034 PCT
46. POM Andrew Jairam	09027	965757	020 PCT
47. POM Christophe Chacon	11082	963446	083 PCT
48. POM Dylan Fazio	19822	958576	083 PCT
49. POM Thomas Donnelly	04376	960473	083 PCT
50. POM Dustin Olivos	19950	950978	083 PCT
51. POM Maode Lin	15021	956851	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
52. INS Gerard Dowling	00000	915640	SRG
Officer(s)	Allegation	Investigator Recommendation	
A . SGT Majer Saleh	Force: Sergeant Majer Saleh used physical force against an individual.		
B . SGT Majer Saleh	Force: Sergeant Majer Saleh used pepper spray against § 87(2)(b)		
C . SGT Majer Saleh	Force: Sergeant Majer Saleh used pepper spray against § 87(2)(b)		
D . SGT Majer Saleh	Force: Sergeant Majer Saleh used pepper spray against § 87(2)(b)		
E . SGT Majer Saleh	Force: Sergeant Majer Saleh used pepper spray against individuals.		
F . An officer	Force: An officer used pepper spray against § 87(2)(b)		
G . Officers	Force: Officers used pepper spray against § 87(2)(b)		
H . Officers	Force: Officers used pepper spray against individuals.		
I . SGT Majer Saleh	Abuse: Sergeant Majer Saleh refused to provide his shield number to § 87(2)(b)		
J . Officers	Force: Officers used physical force against individuals.		
K . Officers	Force: Officers used pepper spray against individuals.		
L . Officers	Force: Officers used pepper spray against § 87(2)(b)		
M . An officer	Force: An officer used pepper spray against § 87(2)(b)		
N . POM Bibek Thapa	Force: Police Officer Bibek Thapa struck § 87(2)(b) with a baton.		
O . POM Bibek Thapa	Force: Police Officer Bibek Thapa struck § 87(2)(b) with a baton.		
P . Officers	Force: Officers struck § 87(2)(b) with a baton.		
Q . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.		
R . Officers	Force: Officers used physical force against an individual.		
S . An officer	Force: An officer used physical force against an individual.		
T . POM Thomas Urban	Force: Police Officer Thomas Urban struck an individual with a baton.		
U . POM Ravi Moonan	Force: Police Officer Ravi Moonan struck § 87(2)(b) with an asp.		
V . POM Ravi Moonan	Force: Police Officer Ravi Moonan struck an individual with an asp.		
W . POM Ravi Moonan	Force: Police Officer Ravi Moonan struck § 87(2)(b) with an asp.		
X . SGT Majer Saleh	Abuse: Sergeant Majer Saleh refused to provide his shield number to § 87(2)(b)		
§ 87(2)(g), § 87(4-b)			
§ 87(2)(g), § 87(4-b)			

Case Summary

On May 30, 2020, § 87(2)(b) filed this complaint in person with the 7th Precinct, who notified IAB by phone, generating original log number § 87(2)(b). The CCRB received the complaint on June 17, 2020. On May 31, 2020, § 87(2)(b) filed a complaint about the same protest incident by leaving a message on the CCRB call processing system (BR01).

On May 30, 2020, a large group of protestors entered the roadway of the FDR Drive near the Brooklyn Bridge in Manhattan. They marched north on the FDR Drive until reaching the vicinity of the intersection of South Street and Gouverneur Slip East at approximately 8:15 p.m., at which time they began exiting the highway by crossing a concrete wall dividing the FDR Drive and South Street. Officers from numerous commands had been following the marchers on the highway, and additional officers also arrived at the location. Sergeant Majer Saleh, of the 34th Precinct, allegedly pushed an individual off the concrete wall between the highway and South Street

(Allegation A: Force, § 87(2)(g) Sgt. Saleh used pepper spray against § 87(2)(b) and other unidentified victims in the crowd **(Allegations B-E:**

Force, § 87(2)(g) Additional unidentified officers also allegedly used pepper spray against § 87(2)(b) and unidentified victims **(Allegations F-H: Force,** § 87(2)(g)

§ 87(2)(b) Sgt. Saleh allegedly refused to provide his shield number to § 87(2)(b) **(Allegation I: Abuse of Authority,** § 87(2)(g)

Officers engaged in various interactions with protestors as they began clearing them off of South Street, and they ultimately took multiple protestors into custody. Unidentified officers allegedly used physical force against multiple unidentified civilians **(Allegation J: Force,**

§ 87(2)(g) Unidentified officers allegedly used pepper spray against unidentified civilians, § 87(2)(b) and § 87(2)(b) **(Allegations K-M: Force,** § 87(2)(g)

Police Officer Bibek Thapa, of the 75th Precinct, pushed § 87(2)(b) with his baton **(Allegation N: Force,** § 87(2)(g) PO Thapa also pushed § 87(2)(b) with his baton **(Allegation O: Force,**

§ 87(2)(g) Additional officers allegedly pushed § 87(2)(b) with their batons **(Allegation P: Force,** § 87(2)(g) An officer allegedly threatened § 87(2)(b) with a can of pepper

spray **(Allegation Q: Abuse of Authority,** § 87(2)(g) Officers brought an unidentified man to the ground while arresting him, and an officer allegedly punched him when he was on the ground **(Allegations R-S: Force,** § 87(2)(g) Police Officer Thomas Urban, of the 75th Precinct, struck the man twice with the butt-end of his baton **(Allegation T: Force,** § 87(2)(g)

While moving protestors on South Street toward Gouverneur Slip East, Police Officer Ravi Moonan, of SRG 4, shoved § 87(2)(b) and an unidentified man with his baton **(Allegations U-**

V: Force, § 87(2)(g) Officers later pursued protestors on Gouverneur Slip East, and PO Moonan struck § 87(2)(b) multiple times with his baton after § 87(2)(b) fell to the

ground **(Allegation W: Force,** § 87(2)(g) Sgt. Saleh allegedly refused to provide his shield number to § 87(2)(b) at the intersection of Water Street and Gouverneur Slip

East **(Allegation X: Abuse of Authority,** § 87(2)(g)

§ 87(2)(g), § 87(4-b)

This case was marked sensitive on July 15, 2021, after a New York Times online article included § 87(2)(b) video footage of Sgt. Saleh discharging pepper spray at protestors. § 87(2)(b)

(b)

The investigation obtained BWC footage from PO Urban, PO Thapa, Sergeant Steven Siermala, and Police Officer Kamron Chase (**BR02-04**, summarized at **BR05**; **BR60**, summarized at **BR61**). It should be noted that a very large number of officers responded to this incident, yet multiple requests to the NYPD for BWC footage yielded only the footage from the four officers listed above. The investigation obtained cellphone footage directly from § 87(2)(b) (**BR59, 62-63**) and § 87(2)(b) (**BR14**). The investigation also obtained additional cellphone footage posted to social media by § 87(2)(b) (**BR06-10**), § 87(2)(b) (**BR11-13**), and § 87(2)(b) (**BR15**), as well as footage posted to social media by civilians who remain unidentified (**BR64-65**) (all summarized at **BR16**).

The investigation also obtained broad CCTV footage from the Lower Eastside Service Center (hereafter LESC) (**BR17-28**, summarized at **BR29**). Some of this footage was significantly out of focus. The pertinent surveillance angles and time-stamps are:

(**BR20**, 01:16:40--01:28:00, South Street looking south)
(**BR23**, 06:15--31:50, South Street looking north)
(**BR27**, 40:10--40:26 & **BR28**, 00:00--06:00, northeast corner of the LESC)
(**BR24**, 01:17:25--01:34:47, Gouverneur Slip East toward South Street)
(**BR18**, 05:55--21:00, LESC alleyway entrance)
(**BR19**, 01:21:30--01:34:00, LESC entrance doors)

This case was reassigned from Inv. Andrew Ridge to Inv. Katherine White on July 30, 2020, after Inv. Ridge's departure from the agency.

This investigation was delayed by a number of factors, including COVID19-related delays in officer interviews, extensive attempts to contact unidentified civilians through social media, the unusually large number of civilians ultimately located and contacted, the lack of comprehensive NYPD documentation regarding officer assignments during the protests, the need for multiple rounds of requests for BWC footage and the large number of officers who apparently did not activate their BWCs, and the need for a court order to obtain the surveillance footage from the LESC.

The CCRB is investigating additional FADO allegations from this incident involving § 87(2)(b) in case § 87(2)(b) which was closed pending litigation at the request of § 87(2)(b) and his attorney. § 87(2)(b) IAB complaint initially generated CCRB case § 87(2)(b) which was closed as a duplicate.

Findings and Recommendations

Allegation (A) Force: Sergeant Majer Saleh used physical force against an individual.

The investigation obtained varying and generalized reports of an officer or officers instigating the incident by using force against an individual or individuals who were standing atop or near the concrete barrier dividing the FDR Drive from South Street. These reports were inconsistent and often did not include detailed descriptions either of the subject officers or the alleged victims. The investigation also located additional references in social media posts to potentially similar conduct. Ultimately, the investigation could only best synthesize these accounts as an allegation that Sgt. Saleh used some amount of physical force against an unidentified person who was at the barrier.

§ 87(2)(b) specifically identified Sgt. Saleh as the subject officer and § 87(2)(b) as the victim (**BR31**). He recounted that Sgt. Saleh told § 87(2)(b) to get down from the barrier. § 87(2)(b) told Sgt. Saleh that he was almost done addressing the crowd, and Sgt. Saleh "kind of"

pushed § 87(2)(b) off the barrier, possibly using his forearms against § 87(2)(b) thigh or leg. § 87(2)(b) fell off the barrier but landed on his feet. However, § 87(2)(b) did not allege that an officer pushed him off the wall (BR34). Instead, he recounted that he was sitting on the wall and fell after an officer discharged pepper spray in his face.

§ 87(2)(b) testified that he was the only person standing on the barrier, and he also did not allege that an officer pushed him off of it (BR32). Instead, he recounted that Sgt. Saleh and another undescribed officer attempted to shove a “petite” young woman as she was climbing over the barrier to leave the FDR Drive. In a Twitter post from shortly after the incident, § 87(2)(b) similarly recounted that Sgt. Saleh was “beating a girl” as she crossed the barrier (BR55).

§ 87(2)(b) recounted seeing officers telling a man standing atop the barrier to get down, and she noted that they grabbed his legs, but he ultimately got down of his own volition (BR33). § 87(2)(b) recounted seeing an officer who was not Sgt. Saleh shove a man who he believed was § 87(2)(b) off the barrier (BR30), but he could not describe the officer and acknowledged that he was across the street and not focusing on this particular officer at the time.

In a Facebook post, § 87(2)(b) generally recounted that an officer started shoving various protesters at the barrier (BR66). § 87(2)(b) provided no further detail, and declined to provide testimony due to his ongoing litigation. Twitter posts from a user known as § 87(2)(b) generally described officers using force during the broader incident but did not address this particular allegation, and that user did not respond to contact attempts (BR55). Similarly, Instagram posts by a user known as § 87(2)(b) described uses of force but did not address this allegation, and that user also did not respond to contact attempts (BR67).

The investigation did not obtain any video footage which showed Sgt. Saleh shoving anyone off the barrier. Sgt. Saleh never activated his BWC during the incident, the other BWC footage did not capture him taking such an action, and the brief and chaotic cellphone clips also did not provide useful evidence. The investigation did obtain wide-angle CCTV footage showing the barrier, but the camera was out of focus and positioned a good distance away, so the footage could neither definitively corroborate nor disprove the allegation (BR20, from approximately 01:17:00).

As will be addressed below, Sgt. Saleh acknowledged using pepper spray against protesters at the barrier (BR35). He did not recount using any other physical force or shoving anyone at the barrier. The other interviewed officers (PO Moonan (BR36), PO Urban (BR37), PO Murphy (BR47), PO Chase (BR46) and PO Thapa (BR43)) either specifically denied seeing Sgt. Saleh shove a civilian at the barrier, denied seeing any officer push a civilian off the barrier, or did not recount becoming involved with civilians on scene until after this allegation was described as taking place.

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Force: Sergeant Majer Saleh used pepper spray against § 87(2)(b)

Allegation (C) Force: Sergeant Majer Saleh used pepper spray against § 87(2)(b)

Allegation (D) Force: Sergeant Majer Saleh used pepper spray against § 87(2)(b)

Allegation (E) Force: Sergeant Majer Saleh used pepper spray against individuals.

It is undisputed that Sgt. Saleh discharged his pepper spray at multiple protestors from atop the FDR Drive.

A brief cellphone clip from § 87(2)(b) shows Sgt. Saleh walking on the southbound lanes of the FDR Drive. § 87(2)(b) stands among other protestors on South Street, on the other

side of the concrete barrier from Sgt. Saleh (BR07). By this time, there no longer appear to be any protesters on the FDR Drive itself, and numerous uniformed officers are directing vehicles to resume the flow of traffic. The protestors are filming the officers and yelling. Sgt. Saleh begins walking north along the wall and ejects pepper spray for three seconds from a canister in his left hand, across the wall at § 87(2)(b) and the group of protestors. The white male protester in a light-blue shirt who is partially visible at the conclusion of the video is § 87(2)(b).

The blurry, wide-angle CCTV footage appears to capture the moment that Sgt. Saleh discharged the pepper spray (BR20, beginning at approximately 01:20:30). A large crowd of protesters is gathered on South Street, and it appears that the only remaining individuals on the FDR Drive side of the barrier are uniformed officers. In the upper-left portion of the screen, at approximately 01:20:47, an apparently bald-headed officer visibly stretches an arm out at the protesters at the barrier and holds it out while pacing back and forth for a few seconds. The protesters at the barrier immediately react *en masse* by retreating quickly away from the barrier. The bald-headed officer walks a few paces south before walking back north, and he again extends his arm toward a few protesters who have reapproached the barrier (01:21:03 to 01:21:27). The footage is quite blurry, but based upon the context and the comparison with § 87(2)(b) footage, it is apparent that the footage captures the moment when Sgt. Saleh pepper-sprayed the protesters.

The investigation collected numerous reports from civilians about Sgt. Saleh discharging pepper spray at the barrier, though these accounts differed with regard to certain details. § 87(2)(b) testified that he was sitting on the barrier when an officer pepper-sprayed him directly in the face. He fell to the ground and was unable to see which officer sprayed him. § 87(2)(b) recounted seeing § 87(2)(b) being pepper-sprayed in the face at the barrier, but he also did not see which officer discharged the spray. § 87(2)(b) recounted that Sgt. Saleh sprayed him and a group of civilians who had approached the barrier when § 87(2)(b) fell off of it. Sgt. Saleh did not issue any commands before discharging the pepper spray. § 87(2)(b) testified that Sgt. Saleh “indiscriminately” pepper-sprayed protestors after he shoved a woman who was climbing over the barrier. § 87(2)(b) similarly recounted that Sgt. Saleh did not issue any commands before using the spray. § 87(2)(b) added that Sgt. Saleh then climbed over the barrier and continued discharging pepper spray at multiple protesters. § 87(2)(b) specified that one of the people Sgt. Saleh sprayed was the woman to whom the § 87(2)(b) Instagram account belonged. In her Instagram posts, that woman recounted being pepper-sprayed but did not provide more specific details. § 87(2)(b) testified that he and several others were helping protestors lift their bikes over the barrier when Sgt. Saleh suddenly began pepper spraying all of them. In his Facebook post (BR66), § 87(2)(b) recounted that protestors yelled at officers to stop shoving civilians who were crossing the barrier, and an officer discharged pepper spray at the line of protestors who were standing at the barrier.

The remaining civilians who provided testimony to the investigation either did not recount seeing officers discharge pepper spray, or only recounted seeing pepper spray used at later times and locations during the incident.

Sgt. Saleh testified (BR35) that after being instructed to clear the protestors from the streets, he walked onto the FDR Drive and paced “back and forth” to prevent protestors from walking around the end of the barrier onto the highway. He verbally ordered protestors to disperse and get off the streets. The protestors did not comply, and some threw glass and plastic bottles at officers. Five minutes after he arrived, Sgt. Saleh noticed that a “few” individuals on South Street were moving toward the end of the barrier. Sgt. Saleh believed the group intended to enter the FDR Drive by walking around barrier, and he “saw in their eyes” that they “wanted to do something.” He felt that they would “come towards” the officers to attempt to “engage” with them. Sgt. Saleh ejected his pepper spray in two “squirts” or “bursts” at “the general area” of this group of protestors. He was about four or five feet away from them at the time. He discharged the pepper spray to keep the group from entering the highway and getting closer to officers. Sgt. Saleh could not recall if he informed the crowd that he was going to use the pepper spray. Sgt. Saleh also stated

that he gave the individuals “more than enough time” to disperse before using the pepper spray. He stated that he knew that the protestors were not going to leave, and he felt that “hopefully they would disperse” in response to being sprayed. After Sgt. Saleh discharged the pepper spray, the crowd “moved a little” but did not disperse.

Sgt. Saleh could not recall if he ever received training on using pepper spray for disorder control. He could only recall that he received training on it at the Academy when he first joined the NYPD. He had deployed it “once or twice” during his career. He testified generally that an officer can use pepper spray to “overcome resistance,” or if the officer “does not want to get too close to a crowd and is in a dangerous situation.”

The CCTV footage and § 87(2)(b) cellphone footage make clear that Sgt. Saleh was not near the end of the barrier at the time he pepper-sprayed the group of protestors. The footage also contains nothing to indicate that protestors were attempting to cross the barrier back onto the FDR Drive at the time Sgt. Saleh used his pepper spray.

NYPD Patrol Guide Procedure 221-01 (BR41) states that officers can use physical force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Any use of force must be reasonable under the circumstances and not excessive.

NYPD Patrol Guide Procedure 221-07 (BR42) states that officers can use pepper spray to gain or maintain control of people actively resisting arrest or lawful custody, against people exhibiting active aggression, to prevent people from physically injuring themselves or others, and in arrest or restraint situations where physical presence and/or verbal commands cannot overcome physical resistance. Active resistance includes physically evasive movements to defeat an officer’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or restrained in custody. Active aggression is a threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent. Officers should not use pepper spray in situations which do not require the use of physical force. If feasible, officers should issue a warning before discharging pepper spray, and they should attempt to avoid using pepper spray against those who appear to be in frail health, young children, women believed to be pregnant, and those with known respiratory conditions. Officers should avoid discharging pepper spray indiscriminately over a large area for disorder control, unless they are specifically trained in the use of pepper spray for disorder control and are ordered to do so by a supervisor.

§ 87(2)(g)

§ 87(2)(g) Sgt. Saleh himself confirmed that he discharged the spray indiscriminately at a group of civilians, and that he did so in order to induce them to disperse. § 87(2)(g)

§ 87(2)(g)

Allegation (F) Force: An officer used pepper spray against § 87(2)(b)

Allegation (G) Force: Officers used pepper spray against § 87(2)(b)

Allegation (H) Force: Officers used pepper spray against individuals.

As noted above, § 87(2)(b) testified to being pepper-sprayed directly in the face while sitting on the barrier, but he did not see which officer sprayed him. Similarly, § 87(2)(b) saw that § 87(2)(b) was hit with peppery spray, but he did not see which officer discharged the spray.

In addition, § 87(2)(b) recounted seeing multiple officers deploy pepper spray at the barrier around the time that Sgt. Saleh did so. Specifically, he testified that two additional officers sprayed him and other protesters at the barrier. However, he could not describe these officers at all.

None of the interviewed officers recalled seeing any officer other than Sgt. Saleh deploy pepper spray at the barrier.

The investigation obtained video footage showing protesters flushing § 87(2)(b) eyes and face, which corroborated that he was hit with pepper spray. The investigation did not obtain any footage showing him being sprayed, and none of the video footage captured any officer other than Sgt. Saleh discharging pepper spray at the barrier. As explained above, the collected footage did not provide a comprehensive record of this portion of the incident, and the investigation thus remains unable to conclude that Sgt. Saleh was the sole officer to discharge spray at the barrier. The investigation also lacked any sufficiently specific testimony or evidence to identify additional officers who would have been likely to provide pertinent testimony.

§ 87(2)(g)

Allegation (I) Abuse of Authority: Sergeant Majer Saleh refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) made Twitter posts the day after the incident, in which he alleged that Sgt. Saleh refused to provide his shield number during the incident (BR55). The posts included photographs of Sgt. Saleh. The photographs (BR55-56) show Sgt. Saleh standing in the street on South Street, apparently after he crossed the barrier from the FDR Drive. One cannot discern from the photographs how far § 87(2)(b) was from Sgt. Saleh when he shot them, especially as the images could have been zoomed, cropped, or otherwise edited before he posted them to Twitter. In his CCRB testimony, § 87(2)(b) recounted that he asked Sgt. Saleh for his shield number about five minutes after Sgt. Saleh used pepper spray at the barrier. § 87(2)(b) was 15 feet away from Sgt. Saleh when he made the request. § 87(2)(b) felt certain that Sgt. Saleh “saw” him when he made the request. Sgt. Saleh did not respond to the request. § 87(2)(b) testimony was not sufficiently specific to aid the investigation in determining exactly when during the incident he allegedly requested Sgt. Saleh’s shield number.

§ 87(2)(b) was the only other civilian who provided any testimony regarding Sgt. Saleh refusing to provide his shield number. He recounted that various unidentified protesters asked Sgt. Saleh for his shield number multiple times, including after he pushed § 87(2)(b) at the barrier, and that Sgt. Saleh never stated his shield number aloud.

The investigation did not locate any video footage capturing § 87(2)(b) requesting Sgt. Saleh’s shield number during this portion of the incident.

Sgt. Saleh denied that any civilian requested his name or shield number after he used his pepper spray. None of the other interviewed officers recounted hearing anyone request Sgt. Saleh’s shield number. These other officers’ respective testimonies had weak evidentiary value, as they generally were not familiar with Sgt. Saleh, were not working with him during the incident, and some did not even arrive on scene until after this allegation purportedly took place.

§ 87(2)(g)

Allegation (J) Force: Officers used physical force against individuals.

The surveillance footage shows that a number of physical altercations took place on South Street after Sgt. Saleh deployed pepper spray, as additional officers arrived from the north and south and began attempting to apprehend protesters. Various witnesses recounted seeing officers use physical force against unidentified civilians during this time.

§ 87(2)(b) saw four officers take a young, slim woman to the ground. She did not see anything that took place immediately before the woman went to the ground. The woman was wearing a black shirt with white lettering, and she may have been dark-skinned. § 87(2)(b) could not describe the officers at all. She believed they arrested the woman. § 87(2)(b) similarly recalled seeing officers holding down a thin black woman on the ground, though he described her as wearing a green army sweater. He could not provide other reliable descriptive information for her, and he could not describe the officers at all. § 87(2)(b) only saw the woman momentarily, and his vision was affected by pepper spray. He did not see how she came to be on the ground, he did not see what the officers ultimately did with her, and he did not otherwise recount seeing officers use force against her.

§ 87(2)(b) testified that officers apprehended and cuffed him at the barrier almost immediately, after which time he was surrounded by chaos as officers attempted to apprehend other protesters. § 87(2)(b) acknowledged that he could not see clearly much of what took place, and he was largely unable to provide descriptions for civilians or officers. He saw three male officers apprehend a chubby, light-skinned Hispanic man at the barrier. The officers pushed the man, he “struggled” with them, and the officers forcibly took him to the ground. § 87(2)(b) could not describe the officers at all. He also saw two white male officers, one of whom wore a white uniform shirt, grab and shove a white man with a bicycle as they arrested him.

§ 87(2)(b) described this portion of the incident as “mass hysteria.” He believed he saw officers, whom he could not describe, push a thin, blond, white man to the ground, though he could not be certain whether the man actually just stumbled and fell. He could not further describe the protester or his clothing. He also recounted that groups of officers took three separate civilians to the ground and “attacked” them while apprehending them, but he could not elaborate or provide any further detail.

§ 87(2)(b) went to § 87(2)(b) aid after he was pepper sprayed. He saw officers shove protesters near the barrier at that time, but he could describe neither the officers nor the civilians.

As noted above, the surveillance camera with a view of this portion of the incident was distant and blurry. It is clear that officers took multiple civilians to the ground and apprehended them, but none of those interactions was captured with sufficient clarity in the footage to match it with any of the above-described testimony. Except for the specific apprehension of an unidentified black man in a white tank top, which is addressed in subsequent allegations, the investigation did not find evidence clearly depicting the various uses of force recounted by § 87(2)(b).

§ 87(2)(b) or § 87(2)(b). The lack of detail in their various testimonies left the investigation unable to identify the alleged victims. Similarly, their testimonies lacked sufficient detail to identify any potential subject officers, and none of the interviewed officers acknowledged participating in the apprehension of any civilian other than the black man in the white tank top.

§ 87(2)(g)

Allegation (K) Force: Officers used pepper spray against individuals.**Allegation (L) Force: Officers used pepper spray against § 87(2)(b)****Allegation (M) Force: An officer used pepper spray against § 87(2)(b)**

Various civilians reported seeing officers deploy pepper spray in different locations as the incident progressed, largely on South Street or on Gouverneur Slip East. Others recounted seeing civilians who had been sprayed but did not actually see officers deploy spray. As with the physical force allegations discussed above, the civilians were often unable to provide useful descriptions of the subject officers or the alleged victims.

§ 87(2)(b) recounted that, after Sgt. Saleh deployed pepper spray from the FDR Drive, additional officers advanced south on South Street in “military ranks.” Some number of officers in that group deployed pepper spray against him and approximately five or six other civilians. Of these other civilians, he was able only to describe one as a young woman and another as having a bicycle. § 87(2)(b) retreated to Gouverneur Slip East, flushed his eyes with water, and then returned to the intersection with South Street. Officers continued to march in “military ranks,” and four of the officers deployed pepper spray again at the intersection. § 87(2)(b) turned his back and walked away, and he saw the spray hit a black teenager wearing a black, long-sleeved top. § 87(2)(b) did not describe any of the officers who used pepper spray.

As noted above, § 87(2)(b) was arrested quickly at the barrier, and testified to seeing various uses of force in the ensuing chaos. In addition to the physical force allegations described above, § 87(2)(b) also recounted seeing a large group of protesters running around chaotically in South Street near the intersection with Gouverneur Slip East. § 87(2)(b) variously reported that an unknown number of officers, at least one officer, or two specific officers, from within a larger crowd of officers, pepper sprayed about 15-20 of the running protesters. He could only describe the two officers as uniformed men, one of whom was white and 5’11” tall.

§ 87(2)(b) similarly reported that numerous civilians were “covered in [pepper spray]” during the incident, and he recalled seeing five or six particular civilians who were “severely injured” by pepper spray. He could not describe any of these civilians, except for the woman associated with the § 87(2)(b) Instagram account, and he did not actually describe specific instances or locations where he saw particular officers use pepper spray.

In her testimony, § 87(2)(b) had great difficulty describing the location of the incident—she did not even know what borough she was in, and she described part of the incident as taking place on a bridge. Consequently, she was also largely unable to reliably describe the timing and locations of particular occurrences within the broader incident. She recounted being pushed with a baton and seeing a man taken to the ground (which will be addressed in subsequent allegation sections), and she did not recount seeing any pepper spray usage during that time. Afterward, she walked to an indeterminate location where there were numerous officers and a small number of protesters. She believed this was a few minutes after she saw the man taken to the ground. An undescribed number of officers approached the protesters and deployed pepper spray. § 87(2)(b) could only describe the officer who sprayed her as a light-skinned woman in uniform.

§ 87(2)(b) was with § 87(2)(b) when nearby officers took a man to the ground. She did not see any officers deploy pepper spray at that time, but she saw protesters who appeared to have been sprayed. She also recounted later seeing that protesters had been sprayed in the alleyway entrance to the LESC but was unable to describe that in greater detail.

§ 87(2)(b) accompanied § 87(2)(b) to the entrance of the LESC on Gouverneur Slip East after § 87(2)(b) was sprayed at the barrier. § 87(2)(b) did not report seeing any additional pepper spray deployment on South Street at that time. § 87(2)(b) sat with § 87(2)(b) on the entrance steps, from which position he could only see a portion of Gouverneur Slip East. § 87(2)(b) could not recall how much time elapsed before he saw a “scuffle” of approximately ten officers pushing protesters on Gouverneur Slip East. § 87(2)(b) saw one of these officers use pepper spray. He could not describe the officer except that the officer was dressed in uniform. § 87(2)(b) did not recount that officers used pepper spray against anyone within the alleyway entrance to the LESC.

Sgt. Saleh testified that he did not recall seeing any officer, other than himself, use pepper

spray against protesters. The other interviewed officers all either denied seeing officers deploy pepper spray or could not recall if they did so.

It should be noted that the surveillance footage captured a protester lighting and dropping some type of smoke bomb at the intersection of South Street and Gouverneur Slip East during the time that officers began making arrests, which emitted a cloud of white smoke and which may have further confused civilians' perception of where and when pepper spray was used.

None of the video footage appeared to capture any officer other than Sgt. Saleh deploying pepper spray during the incident. The wide-angle surveillance footage certainly captured various civilians who appeared to be suffering from the effects of pepper spray, but the footage was not sufficiently comprehensive to determine whether those civilians were sprayed by any officer other than Sgt. Saleh. The wide variety of accounts of pepper spray usage were often without specificity regarding exactly where or when the usage occurred, and they often lacked descriptive details for subject officers and victims. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (N) Force: Police Officer Bibek Thapa struck § 87(2)(b) with a baton.

It is undisputed that PO Thapa pushed § 87(2)(b) with his baton.

§ 87(2)(b) recounted that, when the physical altercations on South Street began, she was near a woman whom officers took to the ground. Officers began clearing civilians away, and § 87(2)(b) told them to stop pushing her and that she could walk by herself. PO Thapa then used his baton to push § 87(2)(b) on her chest an indeterminate number of times. § 87(2)(b) initially claimed that PO Thapa pushed her to the ground but later retracted that claim.

BWC footage and surveillance footage captured this portion of the incident. The surveillance footage (BR20, beginning at 01:20:20) shows that the large group of protesters on South Street largely divided in two directions after Sgt. Saleh deployed pepper spray and more officers began moving onto South Street—some of the protesters went toward the intersection with Gouverneur Slip East, while others moved north along South Street. Officers moved onto the sidewalk beside the LESC on South Street and took up positions in the empty space between the two groups of protesters. § 87(2)(b) remained standing in that empty space, where only a couple protesters remained. The footage quality is poor, but the investigation can identify § 87(2)(b) as the thin woman dressed in black whom an officer approaches at approximately 01:21:46. At that moment, another female protester approached the crowd of officers in the street. Officers moved toward her and she attempted to flee. The officers brought her to the ground directly beside where § 87(2)(b) was standing. PO Thapa and other officers formed a line and moved north on the sidewalk, clearing the remaining protesters away from the ongoing arrest. § 87(2)(b) walked backwards while facing the officers. PO Thapa held his baton horizontally in front of him with both hands, and he first pushed § 87(2)(b) with it at 01:22:02. § 87(2)(b) stopped walking and appeared to remonstrate with the officers, and PO Thapa pushed her again. She held her hands up as if to push back against his baton, and he pushed her out of frame of the surveillance camera.

PO Thapa's BWC (BR03, beginning at approximately 00:39) also captured a portion of his interaction with § 87(2)(b). It shows that PO Thapa left the FDR Drive and ran onto South Street just after officers took the woman near § 87(2)(b) to the ground. PO Urban guided § 87(2)(b) north, and she turned around and slowed down. PO Urban put a hand on her arm in an apparent attempt to keep her moving north, and she appeared to tell him not to touch her (there is no audio at this point in the video). PO Thapa pushed § 87(2)(b) with his baton on her forearms, which she held out in front of her. § 87(2)(b) stopped walking entirely and continued to remonstrate with the officers, and another protester joined her. PO Thapa pushed her on the forearms twice more, at which point officers began arresting the man beside § 87(2)(b) and PO Thapa's BWC fell off his uniform. PO Urban's

BWC (BR02, at approximately 00:50) also captured this interaction, and confirmed that § 87(2)(b) was screaming at the officers when PO Thapa pushed her.

PO Thapa reviewed his BWC footage prior to his CCRB interview, and he characterized his actions as using his hands and baton to “guide” protesters away from the scene. He added that he commanded them to “move back” while pushing out with his baton.

Patrol Guide Procedure 221-01 (BR41) states that officers can use force when it is reasonable to ensure the safety of a member of service or a third person, and when it is reasonable to place a person in custody or to prevent escape from custody. The following factors must be analyzed to evaluate whether or not force was reasonable: the nature and severity of the crime/circumstances; actions taken by the subject; the duration of the action; the immediacy of the perceived threat of harm; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to number of officers; subject’s violent history, if known; presence of a hostile crowd or agitators; and whether or not the subject is under the influence of a narcotic that would affect pain tolerance or increase the likelihood of violence. Any use of force must be reasonable under the circumstances and not excessive.

§ 87(2)(g)

At the point that PO Thapa pushed § 87(2)(b) she was in close proximity to an ongoing arrest and was remaining in an area from which officers had already begun clearing protesters. Moreover, although she initially complied in walking a few steps away, she then stopped moving and screamed at the officers. § 87(2)(g)

Allegation (O) Force: Police Officer Bibek Thapa struck § 87(2)(b) with a baton.

Allegation (P) Force: Officers struck § 87(2)(b) with a baton.

Allegation (Q) Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) recounted that she wanted to position herself between black protesters and officers, and thus she moved closer when she saw § 87(2)(b) and the black man in the white tank top standing their ground as officers attempted to move protesters north on South Street. An officer whom she did not see pushed her in the back. She did not see the black man get taken to the ground—she started filming with her cellphone once she saw that he was on the ground. At some point during this process, two officers held their batons horizontally and used them to push § 87(2)(b) three times on her shoulders and abdomen. § 87(2)(b) could only describe these officers as white men, one of whom had a heavy build and a “big face.” § 87(2)(b) further alleged that a third officer held a can of pepper spray up near her face and threatened to deploy it. § 87(2)(b) could only describe this officer as a white man with a “big face.” In fact, she noted that the officer with the pepper spray may not have been a third officer, and could have been one of the two who pushed her with batons. The exact chronology of this portion of the incident was not entirely clear from § 87(2)(b) testimony—she initially recounted the officers using batons before the pepper spray threat, but later said the baton pushes did not occur until after the officer brandished the pepper spray canister. She recounted generally that officers were ordering protesters to “get back” during this time. She did not understand why she had to move back since she was not doing anything, and she wanted to “control the situation” by continuing to position herself between officers and any black protesters.

Surveillance footage from South Street (BR20, beginning at 01:21:47) showed that § 87(2)(b) initially walked toward officers as they began making arrests on the sidewalk, but then turned back as officers approached her and § 87(2)(b) appeared to attempt to place herself between the officers and other protesters, and she held her arms outstretched at the officers. PO Thapa lightly pushed her in the back with his baton, at which point § 87(2)(b) backed out of

view of the camera. Surveillance footage from the northeast corner of the LESC (**BR28**, beginning at 00:23) captured § 87(2)(b) after she left the view of the surveillance camera described above. § 87(2)(b) is the light-skinned woman in black clothing wearing a white glove on her left hand and a purple glove on her right hand. § 87(2)(b) and another protester remained directly beside the line of officers, while the rest of the protesters backed up farther north. Eventually an officer grabbed § 87(2)(b) right bicep and pushed her farther north. § 87(2)(b) gesticulated and visibly remonstrated with the officers, who continued to direct her to move north. From that point on, § 87(2)(b) stayed near the officers but continued to back away as the officers moved forward, and no officers appear to shove her with batons.

This portion of the incident was also partially captured in the BWC footage from PO Urban and PO Thapa (described in the previous allegation section). PO Thapa's initial baton-shove of § 87(2)(b) is at 00:48, when she was standing between an officer and the black man in the white tank top. The push appears to be relatively light. No other officer is seen pushing § 87(2)(b) with a baton in the BWC footage.

The BWC footage did appear to capture a tall male officer gesturing toward § 87(2)(b) with an object consistent with a can of pepper spray, during the time that officers were attempting to move protesters north and before officers took the black man in the tank top to the ground (**BR04**, at approximately 00:30; **BR03**, at approximately 00:50). The officers' helmet number is not visible in any of the footage, nor does the footage contain any other information by which the investigation could identify him or determine the command to which he was assigned.

§ 87(2)(b) provided a brief clip of cellphone footage (**BR59**) from this portion of the incident. It does not appear to begin until after the allegations described above would have taken place. Officers have already formed a line separating § 87(2)(b) from the black man being arrested. They gesture and direct her to move back, while she yells and curses at them that she has a right to stand where she is and that they should not speak to her like that. The video ends abruptly as § 87(2)(b) appears to get jostled, but it is not clear exactly what is happening and she did not recount any physical force allegations from this point in the incident during her testimony.

As discussed above, PO Thapa characterized his actions during this portion of the incident as using his hands and baton to "guide" protesters away from the scene. PO Urban's testimony was similarly consistent with his BWC footage showing this portion of the incident. PO Thapa and PO Urban both denied seeing any officer threaten a civilian with a pepper spray canister.

Based upon testimony and video footage, it was apparent that PO Moonan, PO Murphy, PO Chase, and Sgt. Saleh were not in the immediate vicinity of § 87(2)(b) during this portion of the incident.

Given the lack of comprehensive video footage, and the relative lack of detail and officer descriptions in § 87(2)(b) testimony, the investigation could neither identify any officer other than PO Thapa who shoved her with a baton, nor conclusively determine that PO Thapa was the only officer to do so. Although the BWC footage captured a brief glimpse of the officer who raised a can of pepper spray at § 87(2)(b) the footage did not contain sufficient information for the investigation to identify that officer. Due to the chaotic nature of the incident, the large number of officers who responded from numerous different commands, and the lack of even a basic description of the officer from § 87(2)(b) interviewing additional officers was not likely to result in the successful identification of that subject officer.

Patrol Guide Procedure 221-01 (**BR41**) states that officers can use force when it is reasonable to ensure the safety of a member of service or a third person, and when it is reasonable to place a person in custody or to prevent escape from custody. The following factors must be analyzed to evaluate whether or not force was reasonable: the nature and severity of the crime/circumstances; actions taken by the subject; the duration of the action; the immediacy of the perceived threat of harm; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to number of officers; subject's violent history, if known; presence of a hostile crowd or agitators; and whether or not the

subject is under the influence of a narcotic that would affect pain tolerance or increase the likelihood of violence. Any use of force must be reasonable under the circumstances and not excessive.

§ 87(2)(g)

Allegation (R) Force: Officers used physical force against an individual.

Allegation (S) Force: An officer used physical force against an individual.

Allegation (T) Force: Police Officer Thomas Urban struck an individual with a baton.

It is undisputed that officers took a black man in a white tank top to the ground, and that PO Urban used a jabbing motion to strike him twice in the back with the end of his baton.

§ 87(2)(b) and § 87(2)(b) specifically recounted seeing this man's apprehension, as they were in the immediate vicinity at the time. § 87(2)(b) recounted that the man, whom she did not know, tried to get her to walk away from the officers who were pushing her away from the scene. She first recounted that the man told officers not to touch her, but later said that he did not make any statements to the officers before they grabbed him. § 87(2)(b) had difficulty describing how officers physically interacted with the man once they took him to the ground—she started crying and looked away shortly afterward. She alleged generally that officers hit him but could not estimate how many times, before later clarifying that she only saw one officer strike him with his hands. § 87(2)(b) recalled that the black man in the tank top appeared agitated and distressed when officers began clearing protesters north. She described officers wrestling him to the ground, before clarifying that she did not actually see how he came to the ground. He was on his back on the ground. § 87(2)(b) denied seeing any officer punch or strike the man on the ground.

§ 87(2)(b) recounted seeing officers grab a black man in a white shirt. The man started “resisting” and the officers took him to the ground. The man repeatedly tried to stand up and get away from officers, who would then bring him back down to the ground. It was unclear whether this apprehension witnessed by § 87(2)(b) was the same as that of the black man in the white tank top, or if § 87(2)(b) witnessed another man being arrested.

As noted above, this portion of the incident was captured in surveillance and BWC footage. The surveillance footage (BR20, beginning at 01:21:54) shows that the man moved to approach the ongoing arrest on South Street, but an unidentified officer in a baseball cap quickly moved to position himself in front of the man. The man briefly stepped toward the officer before assuming a fighting stance and repeatedly grabbing at his shorts in a manner consistent with someone who intends to engage in a fistfight. The man then backed up a few paces as officers advanced, before holding his arm out at PO Thapa and pushing back against him as PO Thapa attempted to push § 87(2)(b) backward. The man then moved out of the frame just before officers began attempting to apprehend him.

PO Thapa (BR03, approximately 00:55) and PO Urban's (BR02, approximately 01:00) BWC footage captured this same moment, though the scene is chaotic and the footage does not provide a comprehensive view of the entire interaction. The footage collectively shows that the officer in the baseball cap put his hand on the black man's chest, and the man responded by pushing back or moving his arms up toward the officer. The officer grabbed the man by the shoulders, and the man swung around and attempted to escape the officer's grasp. Numerous officers surrounded him, grappled with him briefly, and pulled him to the ground. As the man came down and appeared

to continue to grapple with officers, PO Urban quickly jabbed the end of his baton twice into the man's back. The footage does not clearly show any officer punching the man.

§ 87(2)(b) cellphone footage does not begin until after this point, as officers have turned the man on his side with his hands behind his back by the beginning of her footage. The footage eventually shows the officer in the baseball cap bringing the man to a standing position. The man continues to remonstrate with the officer and attempts to break out of his grasp.

PO Urban testified that the man was large and "very strong," and that the man was responding to orders to back up by yelling, getting "aggressive," "flailing back and forth a little bit," and making "fighting motions." Suddenly, the man "threw a punch" at an officer whom PO Urban could not identify. PO Urban could not tell if the punch landed. The man then held onto officers' wrists and arms as he went to the ground, pulling them down with him. Additional officers joined to help, until about five officers were trying to subdue the man. Officers were eventually able to bring him to a sitting position, but were not able to get him face-down. Some officers tried to bring the man's hands behind his back, but he flailed his arms and hands. PO Urban used his baton against the man to overcome his resistance to being arrested. PO Urban then backed away and made sure no one approached the officers from behind. PO Urban did not recall seeing any officer punch the man.

The investigation could not determine if the black man attempted to punch an officer as PO Urban testified. The investigation did not identify the officers who brought the man to the ground, but doing so was not necessary to reach a disposition for that allegation. The investigation could not determine if any officer punched the man and could not identify the putative subject for that allegation.

NYPD Patrol Guide Procedure 221-01 (BR41) states that officers can use force when it is reasonable to ensure the safety of a member of service or a third person, and when it is reasonable to place a person in custody or to prevent escape from custody. The following factors must be analyzed to evaluate whether or not force was reasonable: the nature and severity of the crime/circumstances; actions taken by the subject; the duration of the action; the immediacy of the perceived threat of harm; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to number of officers; subject's violent history, if known; presence of a hostile crowd or agitators; and whether or not the subject is under the influence of a narcotic that would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

Allegation (U) Force: Police Officer Ravi Moonan struck § 87(2)(b) with an asp.
Allegation (V) Force: Police Officer Ravi Moonan struck an individual with an asp.
Allegation (W) Force: Police Officer Ravi Moonan struck § 87(2)(b) with an asp.

§ 87(2)(b) recounted that he retreated from advancing officers by walking with his hands up on Gouverneur Slip East toward Water Street. § 87(2)(b) turned to look at the officers behind him, at which point he tripped and fell over a bicycle lying in the street. § 87(2)(b) called for help, started getting up on one knee, and turned his head towards the officers. When he turned, he saw PO Moonan strike him on the back with a baton from his right shoulder to his left hip bone. § 87(2)(b)

§ 87(2)(b) fell back to the ground, called out to other officers for help, and tried to get up again. PO Moonan then struck the side of § 87(2)(b) right knee with his baton, and § 87(2)(b) fell back to the ground.

The investigation obtained footage showing PO Moonan striking § 87(2)(b) multiple times with his baton on Gouverneur Slip East as § 87(2)(b) alleged, and also obtained footage showing PO Moonan striking § 87(2)(b) and an unidentified man earlier in the incident on South Street. The surveillance footage (BR23, beginning at approximately 17:53, center top of screen) shows PO Moonan (a short, heavyset, dark-skinned, uniformed, Asian male officer wearing a baseball cap) shoving § 87(2)(b) (a tall, thin, bald, white man in shorts and a light-blue button-up shirt) in the back with an asp on South Street. § 87(2)(b) stumbles forward but does not fall. PO Moonan then runs at a dark-skinned man in a white t-shirt who stands with his front against a dumpster (center bottom of screen). PO Moonan strikes the man in the back with an asp.

The second of two handheld footage clips § 87(2)(b) posted on Facebook (BR15, beginning at 00:06) captured PO Moonan's later use of force against § 87(2)(b) on Gouverneur Slip East. PO Moonan can be seen shoving § 87(2)(b) who is walking backwards in the street with his hands up. § 87(2)(b) falls to the ground such that most of his body is hidden from view by a parked car. PO Moonan violently strikes down with his asp at § 87(2)(b) at least four times before the camera changes positions and he is no longer in view. This portion of the incident was also captured in surveillance footage (BR24, at approximately 01:24:03), but the footage is blurry and § 87(2)(b) is far away from the camera.

PO Moonan acknowledged that he pushed protesters with his asp by holding it out horizontally in front of him, but he testified that he did not recall striking § 87(2)(b) or otherwise taking the actions captured in the video footage. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (X) Abuse of Authority: Sergeant Majer Saleh refused to provide his shield number to § 87(2)(b)

In a tweet posted the day after the incident, § 87(2)(b) uploaded a six-second video clip with the following text: "I kept asking for his badge number but he wouldn't give it. They've also covered up their badge numbers. At the end of this video I start running because they started chasing me down through an apartment complex and down the block." The video clip shows § 87(2)(b) standing at the intersection of Gouverneur Slip East and Water Street (BR09). A large crowd of uniformed officers, filling the roadway of Gouverneur Slip East, faces § 87(2)(b) and slowly walks in his direction. Sgt. Saleh appears to be at the front of the group of officers. § 87(2)(b) points a finger at the crowd and yells, "Badge—your badge number!" He then immediately runs away and the footage ends.

§ 87(2)(b) testified that he filmed the video clip after he ran with protesters on Gouverneur Slip East toward Water Street because the officers were clearing protesters from the area next to the barrier on South Street. He requested Sgt. Saleh's shield number from approximately ten feet away. Sgt. Saleh did not answer, and § 87(2)(b) ran away and left the scene.

Based upon the other video footage obtained by the investigation, it appears that § 87(2)(b) cellphone clip took place near the conclusion of the incident, after officers had twice cleared protesters off Gouverneur Slip East toward Water Street.

Sgt. Saleh testified that no civilian asked him directly for his name or shield number on Gouverneur Slip East. After viewing § 87(2)(b) video clip, Sgt. Saleh stated that he did not recall it happening. He also speculated that it would have been unclear if § 87(2)(b) statement was directed at him due to the presence of numerous other officers.

§ 87(2)(g)

The video footage shows a small slice of a chaotic situation, in which § 87(2)(b) pointed at a crowd of officers, did not even articulate a full request, and then ran away. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which the following civilians have been a party: § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b)
 - § 87(2)(b)
- PO Moonan § 87(2)(g) He had been a subject in six cases and 15 allegations, none of which were substantiated.
- Sgt. Saleh has been a member of the NYPD for 20 years and has been a subject in 11 cases and 33 allegations, none of which were substantiated. § 87(2)(g)
- PO Thapa has been a member of the NYPD for eight years and has been a subject in four cases and five allegations, none of which were substantiated. § 87(2)(g)
- PO Urban has been a member of the NYPD for seven years, and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 16, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint by § 87(2)(b) or § 87(2)(b) (BR53). § 87(2)(b) is pursuing a civil lawsuit, which will be detailed in case § 87(2)(b)
- § 87(2)(b) filed a Notice of Claim recounting that an officer pepper-sprayed him in the face, and that he fell to the ground and injured his right leg as a result. He sought an amount of financial compensation to be determined by a jury (BR54). A request for information regarding a 50H hearing is pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 5

Investigator: Katherine White Inv. Katherine White October 8, 2021
Signature Print Title & Name Date

Squad Leader: Daniel Giansante IM Daniel Giansante October 8, 2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date